

Present:***Mr. Justice Md. Kamrul Hossain Mollah*****CIVIL REVISION CASE NO. 3341 of 1993****IN THE MATTER OF:*****An application under Section 115 (1) of the Code of Civil Procedure.*****IN THE MATTER OF:*****Momtaz Ali******..... Plaintiff- appellant-Petitioner******Chand Ali and others******..... principal defendants-respondents-opposite parties******Iman Ali******..... Proforma defendants-respondents-opposite parties******Md. Rojob Ali and others******..... Added defendants-respondents-opposite parties***

None appeared on behalf of both the parties.

Heard on:24.07.2023 &**Judgment on: 25.07.2023.****Md. Kamrul Hossain Mollah,J:**

In an application under section 115 of the Code of Civil Procedure, 1908, the petitioner obtained the instant Rule in the following terms:

Let a Rule be issued calling upon the opposite party Nos.28-30 to show cause as to why the judgment and decree dated 11.04.93 and 18.04.93 respectively passed by the District Judge, Sunamgonj

in Title Appeal No. 70 of 1991 affirming the judgment and decree dated 29.10.91 and 04.11.91 respectively passed by the Senior Assistant Judge, Sunamgonj in Title Suit No. 8 of 1988 should not be set aside and/or such other or further order or order passed as to this Court may seem fit and proper.

None appeared to press or oppose the instant revisional application although it has appeared in the daily cause list with the names of the learned Advocates. However, considering the long pendency of the instant revisional application it has been taken up for disposal on merit.

The petitioner herein as plaintiff filed Title Suit No. 8 of 1988 before the Court of learned Senior Assistant Judge, Sunamganj Sadar impleading the opposite party No. 1-26 as principal defendants and opposite party No. 27 as proforma defendants for declaration of his title by purchase in the suit land.

The facts relevant for disposal of this revision case are as follows:

The suit land along with other land situated in Mouja Chandpur at present according to settlement survey named as Mouja Paschim Chandpur J.L. No. 55 appertaining to Takuk No. 28045 /57 and the suit land along with other lands belong to one

Sunahor Ali and Aziz and they sold it to one Shorafat Talukder of Janigaon. Thereafter, the said Sharafot Talukder sold eight annas share in the Southern side to Jahur Ali, Rois Ali @ Moina and Rozot and the remaining eight annas in northern side to Mizaj Ullah, Suruj Ali and Chand Ali, that after purchase the said Johur Ali and Rzot had been possessing and ejnoying their purchased land in northern side which includes fifty percent land of Dag Nos. 1517 and 1596 and the remaining 8 annas land in the soughtern side had been possessing and enjoying by the said Mizaj Ullah, Suruj Ali and Chand Ali. Thereafter, the said Johur Ali, Rois Ali and Rozot sold their land to the plaintiff and defendant No. 27 by executing a registered kabala dated 03.04.63 corresponding to 29th Chaitra 1369 B.S and delivered possession. Thereafter, the plaintiff petitioner and defendant No.27 had been enjoying and possessing the suit land by growing crops and enjoying it's usufructs, later on the defendant No.27 transferred his share to the plaintiff by executing a deed of gift dated 24th Choitra 1392 B.S. and delivered possession to him and since then the plaintiff have been enjoying and possessing the entire suit land by growing crops over it. Though Badshajan the predecessor of defendant Nos. 20-25 and the defendant No. 26 Tekajan Bibi got no title and interest in the suit land but it was wrongly recorded in their names in the last

settlement survey for which Johur Ali, Rois Ali and Rozot filed suit against them and they by a registered deed executed in favour of Johur Ali, Rois Ali and Rozot relinquished their claim and accordingly the suit was withdrawn. The defendants Chand Ali, Mizaj Ullah and Soruj Ali had been possessing in the southern side of the suit land which was belonged to them but in the last settlement survey their names were wrongly recorded in dag No. 45 instead of Dag No.46 of southern side, the said Chand Ali, Mizaj Ullah and Suruj Ali have got no title and interest in any part of the land of Dag No. 45 and a part of the land of Dag No. 45 in northern side Johur Ali, Rois Ali and Rozot were in possession having their right and title, the said recording is illegal and erroneous. The said Mizaj Ullah died leaving behind defendant Nos. 4-7 as his successors, the said Suruj Ali died leaving behind the defendant No.2 as his successor, the said Johur Ali died leaving behind defendant Nos. 9-14 as his successors and the said Rois Ali died leaving the defendants No. 15-19 as his successors. During last settlement survey the suit land was recorded wrongly in the name of Badshajan and the defendant No.26 though they had got no title, interest and possession over the suit land. For the aforesaid wrongly recorded their names in the 1st survey settlement khatian created cloud over the right, title and interest of the plaintiff in the suit land

which he came to know in the last part of Choitra 1392 B.S. for the First time on making an application for information which the cause of action of the suit was arises in that time and hence the suit.

On the other hand, the opposite party Nos. 1-27 did not contest the suit but the opposite party Nos. 29-30 were added as defendant in the suit by making a prayer under order 1 Rule 10 of the Code of Civil Procedure and they contested the suit by filing written statement denying the whole story of the plaintiff and stating inter alia that there is no cause of action to file the suit by the plaintiff, the suit is barred by limitation, suffers from defect of parties, plaintiff has got no title, interest and possession in the suit land in any manner, suit is not maintainable without paying advalorem court fees since he has got no possession, suit is barred by waiver, estoppel and acquiescence, the suit land is not that land which was purchased by the plaintiff by the kabala dated 01.04.63 corresponding to 20th Choitra 1369 B.S. and that deed do not attract the suit land in any manner, that they denied the averment made in the plaint and stated the real facts that the suit land was belong to the predecessor of the principal defendant, and after the death of their predecessors they have been enjoying and possessing the suit land by growing crops over it and while they had been enjoying and possessing the same for their own necessity they sold it by

executing several deeds on several dated for example on 12.02.84 Shamsunnessa executed a deed in favour of Rojob Ali, on 21.09.82 Jamir Uddin and others executed deeds in favour of Rojob Ali, on 06.08.82 Johur Ali executed a deed in favor of Rojob Ali, on 15.03.82 Rois Ali executed a deed in favour of Rojob Ali, on 06.08.81 Abdur Noor executed a deed in favour of Rojob Ali and on 19.03.87 Abdul Gofur and others executed another deed in favour of Rojob Ali which all are registered deeds and they also delivered possession and by this way the said Rojob Ali and other contesting defendants by purchasing the suit land have been enjoying and possessing the same by growing crops over it. The contesting defendants purchased the suit land by the registered deeds within the knowledge of the plaintiffs and others of the locality and the plaintiff filed the suit with false statements with malafide intention though he has got no right, title, interest and possession over the suit land. The suit is not maintainable without having any local investigation since the kabala of thte plaintiff dated 01.04.63 do not attract the suit land and that kabala is imaginary collusive, forged and anti-dated one. The plaitniff instituted Criminal Misc. Case No. 63 of 1988 under section 144 of the Code of Criminal Procedure in the Court of Upazilla Magistrate against them which was sent for investigation by police who

submitted an investigation report on 06.04.88 reporting that the suit land have been enjoying and possessing by them growing crops over it as its purchaser and hence the suit is liable to be dismissed.

During course of trial, the plaintiff examined 3 witnesses as PW.1, 2, 3 and produced some document as exhibits and the defendant examined 4 witnesses as DWs.

After concluding the trial of the case, perusing the record, the learned Senior Assistant Judge dismissed the suit vide his judgment and decree dated 29.10.91 and 04.11.91 respectively.

Being aggrieved thereby, the petitioner as appellant filed Title Appeal being No. 70 of 1991 before the Court of learned District Judge, Sunamganj, who by his judgment and decree dated 11.04.93 and 18.04.93 respectively dismissed the appeal.

Being aggrieved by and dissatisfied with the impugned judgment and decree dated 11.04.93 and 18.04.93 respectively, the plaintiff-appellant-petitioner moved this Court by filing an application under section 115 of the Code of Civil Procedure and obtained the instant Rule.

I have perused the impugned order, relevant application, testimony of the PWs and DWs, grounds taken therein as well as documents annexed herewith.

On perusal of the same, it transpires that admittedly, the suit land was not recorded in the name of the plaintiff. The plaintiff's case is that the suit land formerly belonged to Sonahar Ali and Aziz who sold the same to Sarafat Talukder and that Zahur Ali, Rois Ali @ Moyna Miah and Rajaz Ali sold the suit land to the plaintiff and the defendant No. 27 by a registered kabala dated 03.04.63. But in support of his claim the plaintiff did not file any document to show and prove that the suit land formerly belonged to Sonahar Ali and Aziz. The plaintiff also failed to file any document to show and prove that Sarafat Talukder purchased the same from the said two persons. The plaintiff has claimed title to the suit land on the basis of the registered kabala deed dated 03.04.63 (Exhibit.3) alleged to have been executed by Rajat Ali, Rois Ali and Jahur Ali in favour of the plaintiff and the defendant No. 27. It has been mentioned in para 2 of the plaint that the said vendors of the plaintiff purchased the suit land from Sarafat Talukder. But the plaintiff did not file any kabala to show and prove that the vendors of the plaintiff purchased the suit land as alleged. The plaintiff failed to prove his vendors ownership in the suit land and consequently, the plaintiff did not acquire any right, title and interest over the suit land on the basis of Kabala Exhibit.3.

It appears from the cross-examination of PW. 1 regarding the possession over the suit land that they does not know the khatian number of the suit land. But the plaintiff claimed that the suit land situated in two plots being Nos. 45 and 46 whereas it appears from the plaint schedule that plot No.45 has been written in place of plot No.46 and the plot No. 46 has been deleted. PW.2 Askar Ali in his cross examination mentioned that he does not know the Khatian of the suit land and he also mentioned that there are 7/8 plots in the suit land which is contradictory with the statements of PW.1. PW. 3 Hormuj Ali in his cross examination mentioned that Rajab Ali, i.e. defendants are possessing the suit land. So, considering the testimony mentioned above and all other relevant records it is found that the plaintiff could not be able to prove his right, title and interest over the suit land beyond reasonable doubt.

In light of discussion made and consideration made here above, this Court is led to find that the Appellate Court below rightly passed the impugned judgment and decree, the appellate Court below appears not to have committed any error of law resulting in any error in the impugned order occasioning any failure of justice.

This Court finds no merit in the Civil Revision Case for which the order warrants no interference by this Court and as such, the Rule is liable to be discharged.

In the result, the Rule is discharged on merit without any order as to costs.

The impugned judgment and decree dated 11.04.93 and 18.04.93 respectively passed by the District Judge, Sunamgonj in Title Appeal No. 70 of 1991 affirming the judgment and decree dated 29.10.91 and 04.11.91 respectively passed by the Senior Assistant Judge, Sunamgonj in Title Suit No. 8 of 1988 is hereby upheld and confirmed.

Let the L.C.R. along with a copy of this judgment be transmitted down at once.